

FREELANCE SERVICE AGREEMENT

Digital Services Contract

Contract Reference: TechSol/2025/FSA/0842

1. Parties to the Agreement

Client (Company)	TechSolutions Pvt. Ltd.
Registered Address	Plot 47, HITEC City, Hyderabad, Telangana - 500081
CIN	U72900TG2018PTC123456
Client Representative	Mr. Rajesh Kumar, Head of Operations
Email	contracts@techsolutions.in

Freelancer Name	Ms. Priya Sharma
Address	Flat 12B, Kondapur, Hyderabad, Telangana - 500084
PAN Number	ABCPS1234D
Email	priya.sharma.dev@gmail.com
Phone	+91-98765-43210

2. Scope of Work

The Freelancer agrees to provide the following services (hereinafter referred to as 'Deliverables') as directed by the Client from time to time:

- Design and development of a full-stack web application using React.js and Node.js
- Database architecture and implementation using PostgreSQL
- RESTful API development and third-party API integrations
- UI/UX design, wireframing, and prototyping as per Client requirements
- Code documentation, testing, and bug fixing
- Any additional tasks assigned by the Client's management team at their sole discretion
- Post-delivery maintenance and support for a period of 90 days at no additional charge

NOTE: The Client reserves the right to expand or modify the scope of work at any point during the contract period without additional compensation, provided such additions are deemed reasonable by the Client.

3. Project Timeline and Milestones

Milestone	Description	Due Date	Payment %
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M1	UI Mockups & Wireframes approved by Client	15 July 2025	10%
M2	Frontend development complete	31 July 2025	20%
M3	Backend & API integration complete	20 Aug 2025	25%
M4	Testing, QA, and bug fixes complete	05 Sep 2025	20%
M5	Final delivery, deployment & documentation	20 Sep 2025	25%

4. Payment Terms

4.1 Total Project Fee: INR 1,20,000 (Indian Rupees One Lakh Twenty Thousand Only), inclusive of all applicable taxes.

4.2 Payment Schedule: Payments shall be released within 45 (forty-five) working days of milestone approval, subject to the following deductions:

- A processing fee of 5% will be deducted from each payment by the Client's finance team
- GST (18%) shall be deducted at source by the Client and remitted on the Freelancer's behalf — no GST invoice from the Freelancer will be accepted
- A quality assurance hold of 10% on each milestone payment will be retained until 90 days post final delivery

4.3 Late Delivery Penalty: In the event of any delay by the Freelancer, a penalty of INR 2,000 per calendar day will be deducted from the outstanding payment. Delays caused by the Client's delayed feedback shall NOT qualify as an extension unless approved in writing by a Director-level employee of TechSolutions Pvt. Ltd.

4.4 The Client may withhold payment at its sole discretion if the delivered work does not meet subjective quality standards as determined internally by the Client.

4.5 No advance payment shall be provided. The Freelancer is expected to self-fund all project-related expenses, including software licenses, tools, and infrastructure costs required to complete the project.

5. Intellectual Property Rights

5.1 All work product, code, designs, documentation, concepts, innovations, and derivative works created by the Freelancer under this agreement shall become the exclusive property of TechSolutions Pvt. Ltd. immediately upon creation, without any additional compensation.

5.2 The Freelancer hereby assigns all present and future intellectual property rights — including copyrights, patents, trade secrets, and moral rights — to the Client globally and in perpetuity.

5.3 The Freelancer waives all moral rights to the work product and shall not use the work or mention the project in any portfolio, resume, social media, or professional profile without prior written consent from the Client's Legal Department.

5.4 The Freelancer shall not independently develop, contribute to, or publish any technology, tool, or library that is similar to, or could be perceived as competitive with, any current or future product of TechSolutions Pvt. Ltd., for a period of 3 (three) years following contract termination.

6. Confidentiality and Non-Disclosure

6.1 The Freelancer agrees to maintain strict confidentiality regarding all information, data, business processes, client details, technical specifications, and any other material obtained during the course of this agreement.

6.2 This confidentiality obligation shall continue indefinitely after the termination of this agreement, with no time limit.

6.3 Breach of this clause shall entitle the Client to seek damages of no less than INR 10,00,000 (Ten Lakhs) per incident, plus legal costs, without the need to prove actual loss.

6.4 The Freelancer is prohibited from discussing compensation, contract terms, or working conditions with any other freelancer engaged by the Client.

7. Termination

7.1 Termination by Client: The Client may terminate this agreement at any time, without cause, by providing 7 (seven) calendar days written notice via email. Upon termination:

- The Client shall pay only for work explicitly approved in writing prior to the notice of termination
- Work in progress at the time of termination shall not be compensated
- Any milestone payments already released are subject to clawback if the Client determines, in its sole opinion, that the delivered work is unusable

7.2 Termination by Freelancer: The Freelancer may terminate this agreement by providing 30 (thirty) calendar days written notice. In such case:

- The Freelancer shall complete and deliver all work in progress to a functional state before the notice period ends
- The Freelancer forfeits all milestone payments not yet released as of the termination date
- The Freelancer shall be liable for any cost incurred by the Client to engage a replacement vendor, up to a maximum of INR 50,000

7.3 Immediate Termination: The Client may terminate immediately without notice or payment in the event of: any perceived underperformance, failure to respond within 2 hours during business hours (9 AM to 9 PM IST including weekends), or any conduct deemed inappropriate by the Client at its discretion.

8. Liability and Indemnification

8.1 The Freelancer shall indemnify and hold harmless TechSolutions Pvt. Ltd., its directors, employees, and affiliates from any claims, losses, damages, or expenses arising from the Freelancer's work, errors, omissions, or actions.

8.2 The Client's total liability to the Freelancer for any claim arising from this agreement shall not exceed INR 5,000 (Five Thousand Rupees) regardless of the nature or severity of the claim.

8.3 The Freelancer accepts full legal and financial responsibility for any security vulnerabilities discovered in the delivered code for a period of 2 (two) years post-delivery, even if such vulnerabilities arise from the Client's subsequent modification of the code.

9. Working Conditions and Availability

9.1 Although the Freelancer is engaged as an independent contractor, the Freelancer is expected to be available and responsive on the Client's Slack workspace between 9:00 AM and 9:00 PM IST, Monday through Sunday.

9.2 The Freelancer shall attend all meetings scheduled by the Client with at least 30 minutes notice and shall not decline more than 2 meetings per month.

9.3 The Client may require the Freelancer to work on-site at the Client's Hyderabad office for up to 5 days per month at no additional compensation.

9.4 The Freelancer shall not engage in any other paid work, freelance project, or employment during the term of this agreement without prior written approval from the Client.

10. Dispute Resolution

10.1 In the event of any dispute, the parties shall first attempt to resolve the matter through good-faith negotiation for a period of 15 days.

10.2 If negotiation fails, the dispute shall be referred to a sole arbitrator appointed exclusively by TechSolutions Pvt. Ltd., whose decision shall be final and binding.

10.3 All legal proceedings, if any, shall be conducted exclusively in courts located in the jurisdiction where TechSolutions Pvt. Ltd. is registered, regardless of where the Freelancer resides or where the services were rendered.

10.4 The Freelancer waives the right to participate in any class action or collective dispute resolution process.

11. Governing Law

This agreement shall be governed by the laws of India. However, the Client reserves the right to apply any international law or jurisdiction it deems applicable in matters involving IP or confidentiality.

12. General Provisions

12.1 Entire Agreement: This document constitutes the entire agreement. Any verbal promises, representations, or assurances made during negotiations shall have no legal effect.

12.2 Amendment: The Client reserves the right to amend any terms of this agreement with 48 hours written notice to the Freelancer. Continued engagement after such notice constitutes acceptance.

12.3 Severability: If any provision is found to be unenforceable, the remaining provisions shall continue in full force.

12.4 Assignment: The Client may assign this agreement to any third party without the Freelancer's consent. The Freelancer may not assign any obligations under this agreement.

12.5 Force Majeure: Force majeure events shall excuse the Client from payment obligations but shall not excuse the Freelancer from delivery obligations.

13. Signatures

By signing below, both parties confirm they have read, understood, and agreed to all terms of this agreement.

For TechSolutions Pvt. Ltd.

Authorised Signatory

Name: Mr. Rajesh Kumar

Designation: Head of Operations

Date: _____

Freelancer Acknowledgement

Freelancer Signature

Name: Ms. Priya Sharma

PAN: ABCPS1234D

Date: _____

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